

FOUNDATIONS ACT 2011**APPLICATION FOR THE ESTABLISHMENT OF A FOUNDATION**

Pursuant to Section 4(1)

NOTE: Must be completed by the holder of a class 4 licence issued under section 7 of the Financial Services Act 2008.

1. Details of the name of the Foundation:

Name Reservation Number:	49184A
Proposed Foundation Name:	THE SHUTTLEWORTH BOTANIC GARDEN FOUNDATION

2. Name of the Registered Agent.. OCORIAN TRUST (ISLE OF MAN) LIMITED.....

3. Particulars of the Nominated Officer (Beneficial Ownership Act 2017 Notes 1 to 4):

Name:	Ocorian Trust (Isle of Man) Limited
Address:	33-37 Athol Street, Douglas, IM1 1LB, 33-37 Athol Street, Douglas, Isle of Man Isle of Man
Consenting Signature:	DocuSigned by:  2572DA5303EA4E3...

4. Pursuant to section 4(4)(aa) The Application must be accompanied by a redacted copy of the rules, omitting any information

- (i) from which a person can or may be identified; and
- (ii) specifying any assets dedicated to the foundation

5. Pursuant to Section 4(5) of the Foundations Act 2011, the undersigned confirms and declares that:

- (i) We will become the registered agent of the foundation on establishment; and
- (ii) We are in possession of a copy of the rules of the foundation and are satisfied that, to the best of our knowledge and belief, these comply with the terms of the Act.

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BENEFICIAL OWNERSHIP ACT 2017 NOTES

1. Any references in this document to a "nominated officer" include, in the case of a legal entity which is exempt from the requirement to have a nominated officer, the person authorised by an Order made by Treasury under section 6(8) of the Beneficial Ownership Act 2017, to undertake on behalf of that entity, any role or responsibility for which a nominated officer is responsible under the Act.
2. Section 6(2) of the Act specifies that "*The nominated officer must be —*
 - (a) *a natural person who is resident in the Island; or*
 - (b) *the holder of a licence issued under section 7 of the Financial Services Act 2008 which permits the holder to carry on the regulated activity (within the meaning of section 3(1) of that Act) of providing corporate services."*

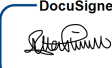
(In the case of a legal entity which is exempt from the requirement to have a nominated officer, the relevant Treasury Order will specify by whom the roles and responsibilities of the nominated officer may be carried out.

3. In the case of a nominated officer who is a natural person, the officer's name and home address in the Island must be listed. In all other cases, the officer's corporate or firm name and registered office or place of business address in the Island must be listed.
4. A legal entity must, within one month of section 7 of the Act coming into operation, give notice to the Department for Enterprise (Companies Registry) of the appointment of its first nominated officer and of the date on which the appointment was made.

A legal entity must also give notice to the Department, within one month of the date of:

- (a) an appointment of a nominated officer;
- (b) a change in a nominated officer; or
- (c) a change in the details in its record of a nominated officer,

and of the date on which it occurred.

Signed on behalf of the Registered Agent by: DocuSigned by:  902122D7C80204F1... (Authorised Signatory) Full Name of Signatory: Ella Pinnock (Print Name)	05 July 2024 Dated: __ / __ / __ (dd) (mm) (yyyy)
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FOUNDATIONS ACT 2011**THE FOUNDATION INSTRUMENT**

1.

Name of Foundation	THE SHUTTLEWORTH BOTANIC GARDEN FOUNDATION
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2. Is the Foundation prohibited from changing its name?

Yes

No

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3. Are the objects of the Foundation:

Charitable

*

Non-charitable

*

Both

*

**please circle as appropriate*

4. State the objects for which the Foundation is established:

The Objects are as follows:

(a) to develop and maintain a botanic garden in the Isle of Man that conforms, to the greatest extent possible, to the accreditation standards (as may be amended from time to time) of Botanic Gardens Conservation International, the fundamental components of which are –

- leadership and strategic direction
- open to the public
- collections management
- public engagement
- horticulture
- research capacity
- conservation activities
- sustainability and ethics
- specialist staff expertise
- network membership; and

(b) to hold, pay or apply property to or for the benefit of the Beneficiaries as the Foundation shall think fit.

5.

List the names and residential addresses of the Foundation's Council Members:	
Name	Residential Address **
Andrew James Inglis	Ballachrink Cottage, Old Castletown Road, Santon, IM4 1HD, Isle of Man

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Malcolm Couch	Primrose Lodge, Athol Park, Port Erin, IM9 6ES, Isle of Man
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please use continuation sheet MF01a, if necessary

** Foundations Act 2011, S.34(c).

6. Details of the Registered Agent:

Name:	Ocorian Trust (Isle of Man) Limited
Business Address: ***	33-37 Athol Street, Douglas, Isle of Man
Post Code:	IM1 1LB

*** Foundations Act 2011, s.34(d)

Note: The Registrar of Foundations has no duty to verify the contents of this form or that the Foundation Instrument or Foundation Rules provides authority with respect to the matters contained herein.	For Official Use only:
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